

24NNCV04441 24NNCV04441

County: los-angeles

Division: Civil Law and Motion

Department: D

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Case Number: 24NNCV04441 Hearing Date: August 7, 2026 Dept: D

TENTATIVE RULING

Calendar: Add-on

Date: August 7, 2026

Case No: 24NNCV04441 Trial Date: November 23, 2026

Case Name: Bandarian v. City of Glendale, et al.

MOTION TO CONSOLIDATE

[CCP § 1048 subd. (a)]

Moving Party: Plaintiff, Varooj Bandarian

Responding Party: Defendant, Montrose Shopping Park Association

RELIEF REQUESTED:

An Order consolidating the instant matter with Bandarian v. Montrose Shopping Park Association, et al. (Case No. 25NNCV06801).

CAUSES OF ACTION: from Complaint

1) Vicarious Liability Pursuant to Government Code § 815 et seq.

2) Dangerous Condition of Public Property Pursuant to Government Code §§ 830 and 835, et seq.

3) Negligence

SUMMARY OF FACTS:

Varooj Bandarian ("Plaintiff") alleges that on October 13, 2023, while walking northbound on the sidewalk of Ocean View Boulevard in front of the property located at 2301 Honolulu Avenue, in the City of Montrose, he tripped and fell as a result of a concealed and defective/bent/warped garden edging fence. Plaintiff alleges that he suffered significant injuries, including but not limited to, his head, ear, low back, groin, left leg/knee/foot, neck, and hip. The Complaint alleges that the defective fence and sidewalk are within the jurisdiction and control of the County of Los Angeles, City of Glendale, Montrose Verdugo City Chamber of Commerce, Montrose Shopping Park Association ("MSPA"), Froyolife, Inc., Wundabar Franchising, Inc., and Wundabar, Inc. (collectively, "Defendants").

ANALYSIS:

"When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." (CCP, § 1048, subd. (a).)

"A consolidation of actions does not affect the rights of the parties. The purpose of consolidation is merely to promote trial convenience and economy by avoiding duplication of procedure, particularly in the proof of issues common to both actions." (Wouldridge v. Burns (1968) 265 Cal.App.2d 82, 86.)

On September 20, 2024, Plaintiff filed a complaint against Defendants, Case No. 24NNCV04441, alleging causes of action for: (1) Vicarious Liability; (2) Dangerous Condition of Public Property; and (3) Negligence (the "City Matter").

On September 25, 2025, Plaintiff filed a complaint in Case No. 25NNCV06801. The first amended complaint alleges a single cause of action for negligence against defendant MSPA (the "MSPA Matter").

On December 2, 2025, the Court ruled the City Matter and the MSPA Matter, related. The City Matter is the lead case.

Plaintiff argues that the two cases arise out of the same facts and involve common questions of law and fact. Both the City Matter and the MSPA Matter involve identical injuries Plaintiff allegedly suffered as a result of his October 13, 2023, fall on the sidewalk of Ocean View Boulevard. (City Matter Compl., ¶¶ 26-35; MSPA Matter FAC, ¶¶ 10-14.) Both cases require determination of the same or substantially similar questions of law, namely liability, causation, and damages related to Plaintiff's alleged injuries from the incident. (City Matter Compl., ¶¶ 40-67; MSPA Matter FAC, ¶¶ 15-24.)

The two lawsuits involve the same parties, same incident, same potential witnesses, same underlying discovery, and the same counsel of record for the overlapping parties. Absent consolidation, the Court would have to hear duplicative testimony from the same parties and witnesses concerning the same facts and issues in separate proceedings. Consolidation will therefore promote judicial economy, reduce litigation expense, minimize duplicative proceedings, and allow all overlapping issues to be resolved in a single forum.

MSPA argues that the motion should be denied because notice of the motion was improper. However, having filed an opposition that addresses the merits of the pending motion, the Court finds that MSPA has waived any objection to statutory notice deficiencies. (Carlton v. Quint (2000) 77 Cal.App.4th 690, 697, quoting Tate v. Superior Court (1975) 45 Cal.App.3d 925, 930 [An "opposition to the motion on its merits is a waiver of any defects or irregularities in the notice of motion."]; Accord De Luca v. Board of Sup'rs of Los Angeles County (1955) 134 Cal.App.2d 606, 609.)

MSPA argues that consolidation is discretionary rather than mandatory. (Opp., pp. 4:6-5:2.) The Court agrees that the decision whether to consolidate lies within its discretion. Exercising that discretion, the Court finds that consolidation is appropriate for the reasons discussed above. Consolidation will not prejudice the parties and will promote the efficient resolution of these related actions.

Accordingly, the motion is GRANTED.¿

RULING:

Plaintiff Varooj Bandarian's Motion to Consolidate is GRANTED.

Case No 24NNCV04441 is the lead case. All future filings shall be made in the lead case.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

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